

FEDERAL BUREAU OF INVESTIGATION
FOI/PA
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FOI/PA# 1388414-0

Total Deleted Page(s) = 8

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Page 84 ~ b6; b7C; b7D;
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Page 88 ~ b7E;

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FEDERAL BUREAU OF INVESTIGATION
COMMUNICATIONS SECTION

JUL 02 1976

TELETYPE

NR 003 PD CODE

2:50 P M NITEL JULY 2, 1976 LJO

TO: DIRECTOR (88-62666)
MINNEAPOLIS (157-846)
RAPID CITY (70-10234)

SAN FRANCISCO (88-15843)

FROM: PORTLAND (88-7637) (P)

DENNIS JAMES BANKS, EN-AIM, 00:MINNEAPOLIS

RE PORTLAND NITEL TO FBIHQ, ET AL, JUNE 14, 1976.

ON JULY 2, 1976, ASSISTANT DISTRICT ATTORNEY (ADA)

[REDACTED] MULINOMAH COUNTY, PORTLAND, OREGON,

ADVISED THAT DENNIS JAMES BANKS HAD BEEN RETURNED TO CUSTODY
AT SAN FRANCISCO, CALIFORNIA, JULY 1, 1976. IN CONTACT WITH

[REDACTED] SAN FRANCISCO POLICE DEPARTMENT,

[REDACTED] WAS TOLD THAT IN EFFECT BANKS HAD BEEN RETURNED TO

CUSTODY BY HIS ATTORNEY, [REDACTED] BECAUSE HE [REDACTED]
ALLEGED AN INDIAN COUPLE, WHO HAD POSTED THEIR BANK PASSBOOK

AS PART OF THE \$5,000 BAIL SET FOR BANKS' RELEASE AT SAN
FRANCISCO, HAD REQUESTED THEIR PASSBOOK BE RETURNED. THEREFORE,
THE BAIL ON BANKS WOULD HAVE TO BE FORFEITED AND BANKS RETURNED
TO JAIL.

ADA [REDACTED] STATED HE ALSO ASCERTAINED THE FOLLOWING

0-73 sent 7-6-76

ISS, USM, Law
USSS Enforcement

57 JUL 23 1976
F408

Reviewed 7/10/76
Key on Violence
phone lady
JTD

XEROX
JUL 21 1976

Assoc. Dir. _____
Dep. A.D. Adm. _____
Dep. A.D. Inv. _____
Asst. Dir.: _____
Adm. Serv. _____
Ext. Affairs _____
Fin. & Pers. _____
Gen. Inv. _____
Ident. _____
Inspection _____
Intell. Intell. _____
Laboratory _____
Legal Coun. _____
Plan. & Eval. _____
Rec. Mgmt. _____
Spec. Inv. _____
Training _____
Telephone Rm. b6
Director's Office b7C

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b7C

[REDACTED]

[REDACTED]

UNRECORDED COPY FILED IN 88-62666-35

PAGE TWO PD 88-7637

FROM [REDACTED]

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ON JULY 1, 1976, [REDACTED] PRESENTED A REQUEST TO THE COURT AT SAN FRANCISCO THAT BANKS BE RELEASED ON HIS OWN RECOGNIZANCE SO THAT HE COULD APPEAR IN CIRCUIT COURT, PORTLAND, OREGON, JULY 2, 1976, AT 2:00 P.M., AS PREVIOUSLY SCHEDULED. THE COURT APPROVED THIS REQUEST. HE THEN TOOK THE APPROVED REQUEST TO BANKS FOR HIS SIGNATURE IN RESULTING RELEASE. [REDACTED]

[REDACTED] WHO WAS PRESENT, REFUSED TO ALLOW BANKS TO SIGN THIS REQUEST AND WENT DIRECTLY TO THE SAN FRANCISCO JUDGE WHO HAD GIVEN IT HER APPROVAL. IT APPEARS [REDACTED] ALLEGED TO THE JUDGE THAT NUMEROUS THREATS OF PERSONAL INJURY HAD BEEN LEVIED AT BANKS AND HIS RELEASE COULD LEAD TO HIS BEING HARMED. THERE WAS NO REPRESENTATIVE OF THE STATE OF CALIFORNIA PRESENT WHEN [REDACTED] SPOKE TO THE JUDGE. AS A RESULT, THE JUDGE REVERSED HER DECISION.

ADA [REDACTED] FURTHER ADVISED THAT AT PREVIOUS HEARINGS IN PORTLAND, OREGON, BEFORE CIRCUIT COURT JUDGE PATRICK DOOLEY, JUDGE DOOLEY HAS STATED THAT IF OREGON GOVERNOR ROBERT STRAUB DOES NOT SIGN OR ISSUE AN ORDER OF ARREST ON BANKS BY JULY 2, 1976,

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PAGE THREE. (PD 88-7637

THE DATE OF HIS SCHEDULED COURT APPEARANCE, HE WILL DISMISS
THE SOUTH DAKOTA FUGITIVE COMPLAINT WHETHER BANKS IS PRESENT
OR NOT. SHOULD JUDGE DOOLEY DO THIS, HE [REDACTED] WILL
REQUEST AN IMMEDIATE HEARING REGARDING THE CIRCUMSTANCES OF
BANKS' RE-ARREST IN SAN FRANCISCO, JULY 1, 1976, AND THE FIRST
WITNESS THAT HE WILL CALL WILL BE [REDACTED]

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PORTLAND AT PORTLAND. WILL FOLLOW AND REPORT RESULTS OF
HEARING.

END

HOLD

CC

[REDACTED]

3

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UNITED STATES GOVERNMENT

Memorandum

TO : Director, FBI (Bufile - 157-29309)

DATE: 8/24/76

FROM : SAC, Minneapolis (157-846)

SUBJECT: DENNIS JAMES BANKS
EM - AIMThe captioned individual has been the subject of a security or extremist investigation by this office. The **Sacramento**Division has verified the permanent presence of the subject in its division as residing and working at the addresses listed below. The **Sacramento** Division is being considered the new Office of Origin.Business Address, Name of Employing Concern and Address,
Nature of Employment, and Union Affiliation, if any.

Residence address

644 Alvarado, Apt. 244
Davis, California

Key Facility Data

Geographical Reference Number

Responsibility

Identification Division Data

Check OR note the following applicable statements:

- ☒ A security flash on subject has been PREVIOUSLY placed in FBI # 118 417 D; therefore, copy of this form is designated for Identification Division.
- ☐ A security flash on subject has been PREVIOUSLY placed in Identification Division; however, FBI number is NOT KNOWN. The following information, therefore, is being furnished and a copy of this form is designated for Identification Division.

Race:

Other Identifying Numbers:

Date and Place of Birth:

Fingerprint Classification:

NOTE: Do NOT designate COPY of FD-128 for Identification Division if FD-165 previously RETURNED to field office because no fingerprints located on subject.

Check the following applicable statements:

- ☐ This individual is the subject of an ADEX Card. (The Bureau is requested to make the appropriate changes in the ADEX at FBIHQ. The EX-108 Division should affix the addresses indicated above and the appropriate case file number.)
- ☐ Subject is designated a Key Black Extremist.
- ☐ Subject is designated a Key Activist.
- ☒ Handwriting specimens have been furnished to the Bureau.
- ☐ A photograph has been furnished to the Bureau.
- ☒ Subject is included in the Extremist Photograph Album (EPA). The new Office of Origin should submit a new complete FD-432 showing the new address and Office of Origin of subject.
- ☒ Dissemination made Secret Service locally re above information. (Two copies of FD-366 enclosed for the Bureau)

22 AUG 30 1976

The following pertinent items are being forwarded to the new Office of Origin with its copies of this letter:

- ☐ ADEX Cards
- ☒ Serials (specify) **See attached**
- ☒ Designated Office of Origin in receipt of all pertinent serials
- ☒ 2 copies of FD-366 (1 copy for dissemination to local Secret Service)
- ☒ Photograph of subject (check appropriate item listed below)
- ☒ Negative and three copies of most recent or best likeness photograph
- ☐ None available
- ☐ Previously furnished

RUC

3 - Bureau (1-Identification Div.)
1 - Sacramento (Encs. 2)
1 - Minneapolis

Enc. 38

2/5 JDP/dkp 1978

MP 157-846

Following are serials being forwarded to
new Office of Origin in this case:

MPlet to Charlotte, WASHRIP, 1/10/73
BTlet and LHM to Bureau, threatened demonstration,
Pocatello H.S., Pocatello, Idaho, 1/18/73
MPmemo from correlation clerk, 1/5/72
MPrep of SA [REDACTED] 5/15/73
MPairtel and LHM "AIM-FUNDING", 7/23/73
MPlet and LHM to Bureau "DENNIS JAMES BANKS" 7/25/73
MPairtel and LHM "DENNIS JAMES BANKS", 8/7/73
MPrep of SA [REDACTED] "DENNIS JAMES BANKS", 9/17/73
MPlet and LHM, "DENNIS JAMES BANKS", 9/26/73
CGlet to Bureau with LHM, 9/11/73
LAlet and LHM to Bureau, 9/10/73
MPairtel and LHM to Bureau, 12/26/73
LAairtel and LHM to Bureau, 12/19/73
OMlet and LHM to Bureau, 3/18/74
MPrep of SA [REDACTED] 4/18/74
MPairtel and LHM to Bureau, 6/12/74
MPrep of SA [REDACTED] 6/14/74
MPlet and LHM to Bureau, 9/16/74
WFOairtel and LHM to Bureau, 11/7/74
MPlet and LHM to Bureau, 12/16/74
MPairtel and LHM to Bureau, 1/16/75
Legat Bern let to Bureau, 2/12/75
MP FD-306 dated 3/21/75
MPlet and LHM to Bureau, 4/21/75
MPlet and LHM to Bureau, 7/2/75
MPrep of SA [REDACTED] 9/29/75
MPairtel and LHM to Bureau, 3/31/76
MPairtel and LHM, 6/24/76

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In Reply, Please Refer to
File No.

UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION
Minneapolis, Minnesota

August 24, 1976

SUBJECT: DENNIS JAMES BANKS

CHARACTER: EXTREMIST MATTER

REFERENCE: Federal Bureau of Investigation memorandum
at Minneapolis dated June 24, 1976.

Referenced communication contained subject's residence and/or employment address. A recent change has been determined and is being set forth below (change only specified):

Residence: 644-Alvarado, Apartment 244
Davis, California

Employment:

157-29309-119

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: SC

DATE: 9/24/76

Re Minneapolis FD-128, 8/24/76.

Enclosed for the Bureau are five copies, for San Francisco two copies, and for Minneapolis one copy of LHM, dated and captioned as above.

One copy of LHM is being designated for U.S. Secret Service, Sacramento, with FD-376 attached thereto.

By referenced FD-128, Sacramento was designated OO in this matter relating to captioned subject.

SC T-1 utilized in LHM is

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LEADS:

SAN FRANCISCO:

AT SAN FRANCISCO AND OAKLAND, CALIFORNIA:

Will follow and report any extremist activities on the part of BANKS and results of hearing scheduled for 11/15/76, regarding his extradition to South Dakota.

SACRAMENTO:

AT SACRAMENTO, CALIFORNIA:

Will continue to follow activities of BANKS.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

- 2 - Bureau (Enc. 5) (RM)
2 - San Francisco (88-15843) (Enc. 2) (RM)
1 - Minneapolis (157-846) (Info) (Enc. 1) (RM)
2 - Sacramento

JRB:epg
(7)

1c - ISS, GCS

1c - 408900-10-6-76

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

3 SEP 27 1976

REC 2857 29309-120

EX-109



1976



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

WASHINGTON, D.C. 20535

September 24, 1976

Director
United States Secret Service
Department of the Treasury
Washington, D. C. 20220

In Reply, Please Refer to
File No.

RE: DENNIS JAMES BANKS

Dear Sir:

The information furnished herewith concerns an individual or organization believed to be covered by the agreement between the FBI and Secret Service concerning protective responsibilities, and to fall within the category or categories checked.

1. ☐ Threats or actions against persons protected by Secret Service.
2. ☐ Attempts or threats to redress grievances.
3. ☐ Threatening or abusive statement about U. S. or foreign official.
4. ☐ Participation in civil disturbances, anti-U. S. demonstrations or hostile incidents against foreign diplomatic establishments.
5. ☐ Illegal bombing, bomb-making or other terrorist activity.
6. ☐ Defector from U. S. or indicates desire to defect.
7. ☒ Potentially dangerous because of background, emotional instability or activity in groups engaged in activities inimical to U. S.

Photograph ☒ has been furnished ☐ enclosed ☐ is not available.

Very truly yours,

A handwritten signature in cursive script, reading "Clarence M. Kelley".
Clarence M. Kelley
Director.

1 - Special Agent in Charge (Enclosure(s))
U. S. Secret Service, Sacramento

Enclosure(s)



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

In Reply, Please Refer to
File No.

Sacramento, California
September 24, 1976

DENNIS JAMES BANKS

In an international American Indian Movement (AIM) (See Appendix) press release, issued on June 12, 1975, at Farmington, New Mexico, in connection with the National AIM Convention, it listed Dennis Banks as the current National Executive Director of that organization.

On May 14, 1976, the Portland Division of the FBI advised that Dennis James Banks appeared at the Multnomah County Circuit Court, Portland, Oregon, on May 13, 1976, to answer outstanding charges resulting from his failure to appear for sentencing in Custer, South Dakota, following his conviction on July 26, 1975, for being armed during a riot and assault with a dangerous weapon without intent to kill. His bail was set at \$10,000 pending a decision by the Governor of Oregon to extradite Banks to South Dakota.

The Portland Division of the FBI advised on June 11, 1976, that the Governor of Oregon announced on June 9, 1976, that he was no longer considering the extradition of Banks to South Dakota since Banks was in California, and it was clear to him Banks would take up residence there. He then added that the Governor of California has extradition papers for Banks.

The San Francisco Division of the FBI advised that Dennis James Banks had on that date posted \$10,000 bond in Municipal Court, San Francisco, California, and a hearing on his extradition is scheduled for July 19, 1976.

An article appearing in the September 17, 1976, issue of the "Sacramento Union", a daily Sacramento, California newspaper, captioned "Bail Reduced", reads as follows:

This document contains neither
recommendations nor conclusions of
the FBI. It is the property of
the FBI and is loaned to your agency.
it and its contents are not to be
distributed outside your agency

157-29209-

Sources whose identities are concealed
herein have furnished reliable informa-
ENCLOSURE tion in the past except where otherwise
noted.

DENNIS JAMES BANKS

"A judge in San Francisco Thursday reduced bail for American Indian Movement leader Dennis Banks to \$2,500 and postponed until Nov. 15 a hearing on whether he would be extradited to South Dakota to face armed riot and assault charges. Municipal Judge Mary Moran Pajalich said she was told Monday by the office of Gov. Brown that he had been busy with legislative matters and had not acted on an extradition warrant from South Dakota. The judge denied a request by Banks' attorney, Dennis Roberts, to cancel completely the \$5,500 bond on grounds the Indian leader, who is out on bail, had shown up for all court hearings. Banks, accompanied to court by several Indian associates, said he planned to start teaching tribal law and Indian philosophy Sept. 30 at DQ University, near Davis."

Deganawidah Quetzalcoatl University (DQU) is an Indian educational institution which is located on property formerly occupied by a U.S. Army communications facility. This property was seized by a band of militant Indians in November, 1970, having been abandoned by the U.S. Army, and the U.S. Department of Health, Education and Welfare subsequently provided funding enabling a so-called university to be established.

Activities

On September 17, 1976, SC T-1, who has knowledge [redacted]

[redacted] that captioned subject had apparently received an appointment as an instructor or assistant professor at DQU, commencing in the fall, 1976, and would be living somewhere in the vicinity of Davis or Woodland, California.

On the same date, inquiry of the manager at 644 Alvarado Avenue, Davis, revealed that [redacted] at that address from July 1, 1976 until August 31, 1976. Banks left a forwarding address of Box 409, Davis, California, c/o DQU.

It is noted that previous investigation concerning AIM has determined that Box 409 is assigned to DQU.

DENNIS JAMES BANKS

The above inquiry further determined that Banks and his wife were quite friendly with an unknown female who worked in the administrative office of DQU and resided in an apartment complex at [redacted] Upon leaving 644 Alvarado Avenue, Banks stated he intended to assume the position of a teacher at DQU for the forthcoming year. Banks also expressed the intention to hold some sort of benefit in the city of Davis to raise funds for student scholarships at DQU since federal monies had not yet been received for that purpose. Banks claimed that possibly the well-known entertainer, Harry Belafonte, might appear in support of this benefit.

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On September 17, 1976, inquiry of the manager at the apartment complex at [redacted] advised that Dennis Banks and his wife were frequent visitors to Apt. [redacted] at that address. which was being rented by [redacted]

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[redacted] who is an employee of [redacted]

[redacted] This individual recently moved to Apt. [redacted] at the same address, which she has leased from September 1, 1976 to August 31, 1977. Two other individuals also reside with [redacted] whose names are [redacted]

On the same date, contact with the UCD Police Department failed to reveal any current information regarding Dennis Banks or any knowledge of a possible forthcoming benefit to be held in the Davis area in support of DQU.

ARMED AND DANGEROUS

AMERICAN INDIAN MOVEMENT (AIM)

A source advised on May 22, 1975, that the AIM was formed in 1968 at Minneapolis, Minnesota, as a civil rights organization with stated goals to secure Indian self-determination and to eliminate the destructive tendencies of Christianity, white-oriented education and the Federal Government from Indian life, along with the yoke of the Bureau of Indian Affairs (BIA).

All AIM chapters, leaders and members are not considered violence-prone; however, AIM members led by various violence-prone leaders have participated in the takeover of the BIA Building, Washington, D. C., in November, 1972, and participated in confrontations with local authorities which resulted in violence at Scottsbluff, Nebraska; the Rapid City - Custer area of South Dakota; the Occupation of Wounded Knee, South Dakota, by force of arms from February 27, 1973, through May 8, 1973. Since that time, AIM leaders, members and supporters have also been involved in numerous confrontations with local and Federal authorities, including the killing of a deputy sheriff in Arizona, the severe beating of two police officers in South Dakota, and extensively damaging a county courthouse at Sioux Falls, South Dakota. Other incidents which AIM has been a party to included the takeover of the Alexian Brothers Novitiate, Gresham, Wisconsin; the Fairchild Plant, Shiprock, New Mexico; and a Pork Plant in Wagner, South Dakota, all occurring in early 1975.

Two FBI Agents were ambushed and slain by Indians on June 26, 1975, on the Pine Ridge, South Dakota, Indian Reservation. On November 25, 1975, four Indians were indicted by a Federal Grand Jury in Rapid City, South Dakota, in connection with the murder of the Agents. Sources advised on December 9, 1975, that all four indicted Indians are members of the AIM.

SAC, Sacramento (157-4159)

November 4, 1976

Director, FBI

DENNIS JAMES BANKS
EM - AIM

ReSC letter and LHM 10/19/76 which LHM was to advise the Department of Justice of the justification for a continued full investigation of subject.

Referenced LHM is not being disseminated by FBIHQ for the following reasons:

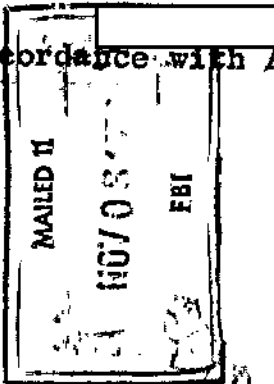
On page two, there is no connection shown between the killing of two FBI agents on the Pine Ridge, South Dakota, Indian Reservation and the subject. It should be shown that subject's indictment at Portland, Oregon, on 12/22/75 was in connection with RESMURS fugitive [redacted]

The statement at the end of the last full paragraph on page two that the specific acts of force and violence associated with Banks have been documented by the news media is not acceptable. It is the responsibility of the FBI to document properly the basis for an investigation. The Investigations Review Unit of the Department of Justice cannot be expected to consult the news media to obtain the basis for an investigation. Accordingly, Sacramento should submit an amended LHM adequately and completely documenting Banks' involvement in acts of force and violence.

- 1 - Minneapolis (157-846)
- 1 - San Francisco (88-15843)

JDP:ekw
(8)

Assoc. Dir.
Dep. AD Adm.
Dep. AD Inv.
Asst. Dir.:
Adm. Serv.
Ext. Affairs
Fin. & Pers.
Gen. Inv.
Ident.
Inspection
Intell.
Laboratory
Legal Coun.
Plan. & Eval.
Rec. Mgnt.
Spec. Inv.
Training
Telephone Rm.
Director Sec'y



Instructions relating to submission of LHM in accordance with Attorney General guidelines).

APPROVED:
Assoc. Dir.
Dep. AD Adm.
Dep. AD Inv.
Asst. Dir.:
Adm. Serv.

Ext. Affairs
Fin. & Pers.
Gen. Inv.
Ident.
Laboratory
Legal Coun.
Plan. & Insp.
Rec. Mgnt.
Spec. Inv.
Training

MAIL ROOM ☒ TELETYPE UNIT ☐

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 10/19/76

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: SC

ReBuairtel to Minneapolis, 9/20/76, enclosing for Minneapolis and interested offices a copy of the Attorney General's memorandum to the Director, FBI, dated 9/14/76, captioned "American Indian Movement", and SClet and LHM to Bureau, 9/24/76.

Enclosed for the Bureau are five copies and for Minneapolis and San Francisco one copy each of LHM setting forth justification for continued full investigation of subject BANKS.

SC T-1 is

b7D

LEADS:

SACRAMENTO:

AT SACRAMENTO, CALIFORNIA:

Will continue to follow activities of BANKS.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

- 1-4084
2 - Bureau (Enc. 5) (RM)
1 - Minneapolis (157-846) (Enc. 1) (Info) (RM)
1 - San Francisco (88-15843) (Enc. 1) (Info) (RM)
2 - Sacramento
JRB:epg
(6)

1 OCT 21 1976



5010-110

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

In Reply, Please Refer to
File No.

Sacramento, California
October 19, 1976

DENNIS JAMES BANKS

In an international American Indian Movement (AIM) (See Appendix) press release, issued on June 12, 1975, at Farmington, New Mexico, in connection with the National AIM Convention, it listed Dennis Banks as the current National Executive Director of that organization.

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Background

According to records of the Bureau of Indian Affairs (BIA), Minneapolis, Minnesota, Dennis James Banks was born April 12, 1937, at Federal Dam, Minnesota. He is enrolled at the Leech Lake Reservation on roll #50 of Minnesota Chippewa Tribe Basic Role. Banks' father is unknown, and his mother is listed as Annie Banks, deceased March 1, 1961.

Residence and Employment

On September 17, 1976, SC T-1, who has knowledge of

[redacted] learned that Banks had apparently received an appointment as an instructor or assistant professor at Deganawidah Quetzalcoatl University (DQU) commencing in the fall of 1976, and would be living somewhere in the vicinity of Davis or Woodland, California.

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On September 17, 1976, inquiry at 644 Alvarado Avenue, Davis, revealed that [redacted] from July 1, 1976 until August 31, 1976. Banks left a forwarding address of Box 409, Davis, California.

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It is noted that previous investigation concerning AIM has determined that Box 409 is assigned to DQU.

This document contains neither recommendations nor conclusions of the FBI. It is the property of the FBI and is loaned to your agency; it and its contents are not to be distributed outside your agency.

Sources whose identities are concealed herein have furnished reliable information in the past except where otherwise noted.

ENCLOSURE

157-29309-121

SEE SERIAL 126 FOR AMENDED LHM.
3cc's destroyed. Consignd 2/19/77 Cee

DENNIS JAMES BANKS

DQU is an Indian educational institution which is located on property formerly occupied by a U.S. Army communications facility. This property was seized by a band of militant Indians in November, 1970, having been abandoned by the U.S. Army, and the U.S. Department of Health, Education and Welfare subsequently provided funding enabling a so-called university to be established.

✓ On September 29, 1976, in an attempt to interview Banks concerning a criminal matter, inquiry was made at 1905 Anderson Court, Davis, which inquiry received a response that Banks was expected to return to that address at approximately 3:00 p.m. on the same date.

Activities

Banks has been associated with the following AIM activities:

Takeover of the BIA Building, Washington, D.C., in November, 1972

Occupation of Wounded Knee, South Dakota, by force of arms from February 27, 1973 - May 8, 1973

Two FBI Agents were ambushed and slain by Indians on June 26, 1975, on the Pine Ridge, South Dakota Indian Reservation. Four Indians were indicted by the Federal Grand Jury, Rapid City, South Dakota, and all four are members of AIM.

On December 22, 1975, Banks and others were indicted by Federal Grand Jury, Portland, Oregon, on four counts of violations of the National Firearms Act and one count of being a convicted felon in possession of a weapon. The specific acts of force and violence associated with Banks have been documented by the news media.

Physical Description

Subject is described as follows:

DENNIS JAMES BANKS

Race:	American Indian
Sex:	Male
Date of Birth:	April 12, 1937
Place of Birth:	Federal Dam, Minnesota
Height:	5'11"
Weight:	170 pounds
Hair:	Black, long
Eyes:	Brown
Complexion:	Copper
Build:	Medium
Scars and Marks:	Tattoo, "Japan 54-57", right upper arm; "Dagger", right forearm; left arm - Social Security Account # "502-28-0630" and spade 118 417 D
FBI #:	Air Force 703-557-0251
Military #:	
Minneapolis Police Department #:	47315

Recommendation

In view of subject's documented history of acts of force and violence and in view of his position of National Executive Director of AIM, continued full investigation of the activities of Banks appears warranted.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

UNITED STATES GOVERNMENT

dao
Memorandum

pph
TO : DIRECTOR, FBI (157-29309)

DATE: 11/5/76

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: Sacramento

171
Re Sacramento letter and LHM to the Bureau,
10/19/76.

The following investigation was conducted by
SA [REDACTED]

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DAVIS, CALIFORNIA

On 10/20/76, Officer [REDACTED] University of California at Davis (UCD) Police Department, Davis, advised that records of that department failed to reflect any information concerning DENNIS JAMES BANKS.

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On 10/20/76, [REDACTED] Community Relations Officer, Police Department, Davis, upon being contacted concerning DENNIS JAMES BANKS, provided the following information:

[REDACTED] advised that his department was well aware of the presence of BANKS at Deganawidah Quetzalcoatl University (DQU). He advised that BANKS has been no problem to the Police Department and that he had an appointment with BANKS at 2:00 p.m. on that date.

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[REDACTED] stated that BANKS had agreed to talk with him since he was working through the California Aggie Christian Association and that the purpose of the association was to furnish a means of coordination and liaison with the many ethnic groups attending the Universities in the Davis community. He advised that

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2 - Bureau (RM)
3 - Minneapolis (Rapid City), (RM)
2 - Sacramento
JRB/mlr
(7)

EX 104

REC-21

157-29309-12270

3 NOV 8 1976

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70 NOV 23 1976



SC 157-4159

the Davis Police Department was not aware of any vehicles being utilized by BANKS and did not know where he was residing. He stated that the appointment with BANKS was to be held at the DQU campus.

On 10/28/76, [redacted] U. S. Probation and Parol Office, Federal Building, 650 Capitol Mall, Sacramento, California, advised that [redacted] had directed a letter dated 10/12/76 to [redacted]

[redacted] wherein she indicated that she had changed her plans and did not intend to travel to [redacted] She indicated in her letter that she planned to remain in the [redacted] area and requested that her [redacted]

[redacted] She indicated that she was then living with [redacted]

[redacted] She indicated that she had applied for housing at the [redacted] and that the housing authority had assured her that action would be taken on her application for housing by 10/21/76.

[redacted] advised that on that date, 10/28/76, he had just received a telephone call from a female attorney who gave her name as [redacted] indicating she was calling from San Francisco and was representing [redacted] [redacted] advised that [redacted] stated that [redacted] was remaining in [redacted] and would not [redacted]

[redacted] stated that the Bureau of Indian Affairs (BIA) had extended a grant to [redacted] [redacted] to attend college.

[redacted] concluded by stating that in all probability, [redacted]

On 11/3/76, [redacted] previously mentioned, advised that in his 10/20/76 meeting with [redacted]

SC 157-4159

BANKS, the meeting centered on a discussion of community relations programs of the Davis Police Department. He advised that BANKS had indicated that he teaches two courses a week at DQU and that it would be only on rare occasions he would travel into the city of Davis. He stated BANKS assured him the Davis Police Department would have his complete cooperation, that there was no drugs, firearms or excessive alcohol at DQU and that he was welcome to monitor classes or Indian community-type functions at DQU. BANKS claimed that he did not trust the FBI but that he would cooperate fully with the Davis Police Department and that if they had problems with Indians or the arrest of an Indian, including himself, that it would only require a telephone call and that person would present himself to the Davis Police Department.

[] stated that in his contact with BANKS, he did not determine where BANKS was residing or the type of vehicle he was utilizing and was left with the impression that BANKS is residing in one of the dormitories on the campus of DQU.

b6
b7C

LEADS:

MINNEAPOLIS

AT RAPID CITY, SOUTH DAKOTA. Will contact U. S. Federal Probation and Parole Officers [] or [] to determine whether in their contact with [] whether she mentioned the plans of [] the subject, as far as his returning to the South Dakota area or plans to remain in the Davis, California, area.

b6
b7C

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 12/7/76

Handwritten: [Signature]
FROM : SAC, SAN FRANCISCO (100-79338) (P)

SUBJECT: DENNIS JAMES BANKS
EM- AIM
OO: Sacramento

Re Sacramento letter to Director, 9/24/76.

On 11/24/76, investigation conducted by San Francisco Division regarding extradition hearing for BANKS revealed that he appeared before Municipal Court Judge PAJALICH, San Francisco, on 11/15/76, and that this hearing on his extradition to South Dakota was postponed until 1/17/77, at 9:30 a.m. in the San Francisco Municipal Court. BANKS posted a \$500 bail before Judge PAJALICH and he was subsequently released. *Handwritten: 60*

LEADS

SAN FRANCISCO

AT SAN FRANCISCO, CALIFORNIA: Will follow and report results of hearing scheduled for 1/17/77.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

REC-46

EX-109

157-29309-123

7 DEC 9 1976

19-4084

- 2 - Bureau (RM)
- 2 - Sacramento (157-4159) (RM)
- 1 - Minneapolis (157-846) (Info) (RM)
- 2 - San Francisco

HLV:ekf
(7)

48

1cc-T(5078)



DEC 15 1976

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

b6
b7c

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 12/6/76

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: SC

ReBulet to Sacramento, 11/4/76.

Enclosed for the Bureau are five copies and for Minneapolis and San Francisco one copy each of LHM setting forth justification for continued full investigation of subject BANKS.

SC T-1 is

SC T-2 is

b7D

LEADS:

SACRAMENTO:

AT SACRAMENTO, CALIFORNIA:

Will continue to follow activities of BANKS.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

- 2 - Bureau (Enc. 5) (RM)
1 - Minneapolis (157-846) (Enc. 1) (Info) (RM)
1 - San Francisco (88-15843) (Enc. 1) (Info) (RM)
2 - Sacramento
JRB:epg
(6)

REC-39

EX-105

DE-33

23 DEC 13 1976

NONSOURCE SOURCE
PAGE ATTACHED

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan



5010-110

SC 157-4159

NON-SYMBOL NUMBER SOURCE PAGE

SC T-3 is [redacted] (per request), [redacted]
[redacted]

SC T-4 is [redacted] (protect); [redacted]
[redacted]

b6
b7C
b7D

Administrative Source Page should be
detached prior to routing to Resident Agency.



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

In Reply, Please Refer to
File No.

Sacramento, California
December 6, 1976

DENNIS JAMES BANKS

In an international American Indian Movement (AIM) (See Appendix) press release issued on June 12, 1975, at Farmington, New Mexico, in connection with the National AIM Convention, it listed Dennis Banks as the current National Executive Director of that organization.

Background

According to records of the Bureau of Indian Affairs (BIA), Minneapolis, Minnesota, Dennis James Banks was born April 12, 1937, at Federal Dam, Minnesota. He is enrolled at the Leech Lake Reservation on roll #50 of Minnesota Chippewa Tribe Basic Role. Banks' father is unknown, and his mother is listed as Annie Banks, deceased March 1, 1961.

Residence and Employment

On September 17, 1976, SC T-1, who has knowledge of

[redacted] learned that Banks had apparently received an appointment as an instructor or assistant professor at Deganawidah Quetzalcoatl University (DQU) commencing in the fall of 1976, and would be living somewhere in the vicinity of Davis or Woodland, California.

On September 17, 1976, inquiry at 644 Alvarado Avenue, Davis, revealed that [redacted] from July 1, 1976 until August 31, 1976. Banks left a forwarding address of Box 409, Davis, California.

It is noted that previous investigation concerning AIM has determined that Box 409 is assigned to DQU.

This document contains neither recommendations nor conclusions of the FBI. It is the property of the FBI and is loaned to your agency; it and its contents are not to be distributed outside your agency.

157-29309-124
ENCLOSURE

Sources whose identities are concealed herein have furnished reliable information in the past except where otherwise noted.

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b6
b7C

SEE SERIAL 126 For Amended LHM.
(Per) [redacted] 2-17-77
Cons./mmd

DENNIS JAMES BANKS

DQU is an Indian educational institution which is located on property formerly occupied by a U.S. Army communications facility. This property was seized by a band of militant Indians in November, 1970, having been abandoned by the U.S. Army, and the U.S. Department of Health, Education and Welfare subsequently provided funding enabling a so-called university to be established.

On November 18, 1976, SC T-1 advised that Banks continues to reside at 644 Alvarado Avenue, Davis, California.

On November 18, 1976, SC T-1 advised that Banks is instructing in two topics at DQU, namely native American philosophy in religion and a federal Indian law seminar.

Activities

On July 13, 1972, [REDACTED] Judicial, Prevention and Enforcement Service, Bureau of Indian Affairs (BIA), Minneapolis, Minnesota, advised that Dennis Banks is a principal leader of AIM and is an advocate of violence.

b6
b7C

Banks, in a speech on December 12, 1972, to the Native American Student Association at Idaho State University, Pocatello, Idaho, described himself as a caravan chairman responsible for the "Trail of Broken Treaties", the group that traveled to Washington, D.C. and occupied the BIA Headquarters Building on November 2-8, 1972. He is reported as stating, "This country was founded on violence. Violence is a very normal thing. It's the most normal thing you and I know of - violence is the only thing this country understands. The Indian wars have not ended." The above information appeared in the "Idaho State Journal", the evening newspaper of Pocatello, Idaho.

On February 27, 1973, members of AIM with non-Indian supporters, seized hostages and by force of arms occupied the town of Wounded Knee, South Dakota, on the Pine Ridge Indian Reservation, during which parts of the town were burned and ransacked, six members of AIM were wounded, two fatally, two federal officers were wounded, one permanently paralyzed, in several exchanges of gunfire between occupants and surrounding government forces. On May 8, 1973, the occupation ended by the surrender of the remaining occupants. More than 200 arrests were made in connection with the occupation.

DENNIS JAMES BANKS

On January 25, 1974, SC T-2 advised that during the occupation of Wounded Knee, Banks carried a .45, a .38, and a Japanese pistol.

The October 11, 1974, edition of the "Winnipeg Free Press", Winnipeg, Manitoba, carried an article, "Government - Indian Clash Best Method: Banks." In this article, Banks stated that violent confrontations have proven to be the best method of getting governments to listen to Indian problems and Indians will continue to use it as long as government officials fail to live up to their responsibilities. Banks told a large audience of students at the University of Manitoba that this is the only way the U.S. Government will listen. Banks further stated that if governments stop listening again, that actions such as Wounded Knee could be only a warning of more large-scale actions to come.

As a result of Banks' activities at Wounded Knee, on March 20, 1973, he was indicted by a Federal Grand Jury at Sioux Falls, South Dakota, on charges of Crime on an Indian Reservation - Burglary, Larceny, Arson; Assaulting a Federal Officer; Impeding and Interfering with Federal Officers During the Commission of a Civil Disorder; Unlawful Possession of Unregistered Firearms (specifically molotov cocktails); and Conspiracy. Also in connection with the Wounded Knee incident, Banks was indicted by a Federal Grand Jury in Sioux Falls, South Dakota, on April 10, 1973, on two counts of assaulting federal officers. This indictment was in connection with the shooting of an FBI Agent and a United States Marshal who was partially paralyzed.

On June 25, 1973, Banks surrendered himself to a Deputy U.S. Marshal and an FBI Agent at Rapid City, South Dakota, and immediately appeared before James H. Wilson, U.S. Magistrate, Rapid City, South Dakota, who set bond at \$105,000. On June 28, 1973, Banks was released on bond.

On April 15, 1976, SC T-3, with whom insufficient contact has been had to determine reliability, advised that

b7D

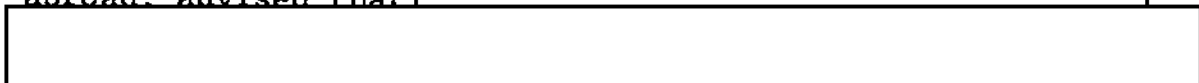
DENNIS JAMES BANKS



b7D

On October 11, 1974, SC T-4, a confidential source abroad, advised that

b7D



On May 21, 1975, Banks spoke at the ceremonies opening an AIM-sponsored "survival school" in Minneapolis, Minnesota. He stated that AIM was "joining forces with Third World groups located in Micronesia, South Africa, and South America".

Physical Description

Subject is described as follows:

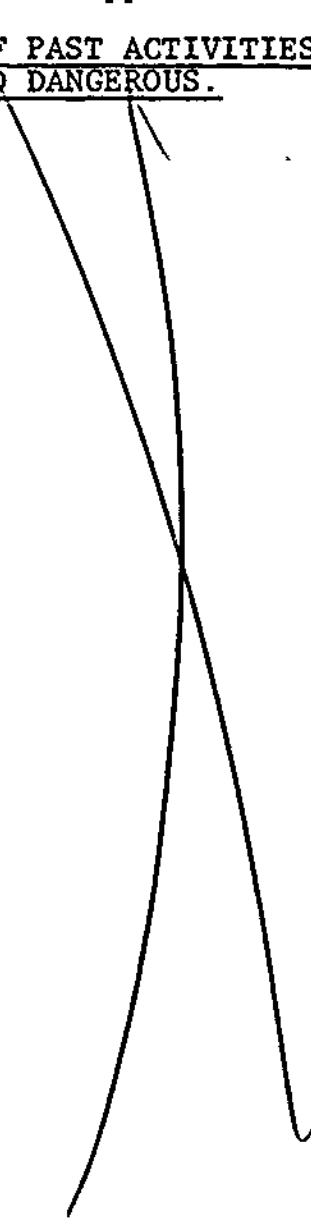
Race:	American Indian
Sex:	Male
Date of birth:	April 12, 1937
Place of birth:	Federal Dam, Minnesota
Height:	5'11"
Weight:	170 pounds
Hair:	Black, long
Eyes:	Brown
Complexion:	Copper
Build:	Medium
Scars and Marks:	Tattoo, "Japan 54-57", right upper arm; "Dagger", right forearm, left arm - Social Security Account # "502-28-0630" and spade 118 417 D
FBI #:	Air Force 703-557-0251
Military #:	
Minneapolis Police Department #:	47315

DENNIS JAMES BANKS

Recommendation

In view of subject's documented history of acts of force and violence and in view of his position of National Executive Director of AIM, continued full investigation of the activities of Banks appears warranted.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.



1 - Sacramento Field Guidance
1 - [redacted]

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SAC, Sacramento (157-4159)

1/5/77

Director, FBI (157-29309)

PERSONAL ATTENTION

HB
DENNIS JAMES BANKS
EM - AMERICAN INDIAN MOVEMENT (AIM)

12/1
11/4/76 ReSClet and LHM 10/19/76, Bulet to Sacramento
and SClet and LHM 12/6/76. *12/4*

Referenced Sacramento 10/19/76 LHM was submitted as a memorandum justifying the continued full investigation of subject in view of his activities and position in AIM which is the subject of a full investigation as approved by the Attorney General. *JP*

Referenced Bureau letter pointed out that the Sacramento 10/19/76 LHM showed no connection between the killing of two FBI Agents on the Pine Ridge, South Dakota, Indian Reservation and the subject. This incident was referred to in the LHM. The paragraph following did not mention this incident but stated that subject had been indicted at Portland, Oregon, on 12/22/75 on various charges. Subject's indictment was not related in the LHM to the murder of the FBI Agents. Referenced Bureau letter specifically instructed that it should be shown that subject's indictment was in connection with RESMURS fugitive [redacted] EX-109, REC-86 157-29309-125

b6
b7C

Referenced Sacramento LHM 12/6/76 makes no reference to either of the above incidents. This LHM contains on pages 3 and 4 information furnished on 4/15/76

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b7D

MAILED 9
JAN 04 1977
Assoc. Dir. _____
Dep. AD Adm. _____
Dep. AD Inv. _____
Asst. Dir.: _____
Adm. Serv. _____
Ext. Affairs _____
Fin. & Pers. _____
Gen. Inv. _____
Ident. _____
Inspection _____
Intell. _____
Laboratory _____
Legal Coun. _____
Plan. & Eval. _____
Rec. Mgnt. _____
Spec. Inv. _____
Training _____
Telephone Rm. _____
Director Sec'y _____
FBIHQ files indicate that none of the information furnished by [redacted] was ever confirmed and in fact [redacted] activities were such following his contact with the FBI to indicate that [redacted] information should not be considered reliable.

This April, 1976, information is followed in the LHM by incidents occurring in 1974 and 1975.

1 - Minneapolis (157-846)
1 - San Francisco (88-15843)

JDP:lek (6)
JAN 11 1977
MAIL ROOM ☐ TELETYPE UNIT ☐

FBI/DOJ

Letter to SAC, Sacramento
Re: Dennis James Banks
157-29309

The information furnished by [] which was not included in your 10/19/76 LHM, should not be included in an LHM documenting activities of Banks.

b6
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As instructed in referenced Bureau letter the information showing an association between Banks and RESMURS fugitive [] should be included in the LHM in a manner to show this connection.

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The LHM should set forth the information in a logical and chronological sequence.

The amended LHM should be submitted promptly, within one week of the receipt of this communication.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

APPROVED:

Director.....
Assoc. Dir.....
Dep. AD Adm.....
Dep. AD Inv.....

Adm. Serv.....
Ext. Affairs.....
Fin. & Pers.....
Gen. Inv.....
Ident.....
Intell.....

Legal Coun.....
Plan. & Insp.....
Rec. Mgnt.....
Sci. & Tech.....
Spec. Inv.....
Training.....

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

FROM : SAC, SACRAMENTO (157-4159) (P)

DATE: 1/14/77

SUBJECT: DENNIS JAMES BANKS
BM - AIM
OO: Sacramento

Re Bureau letter to Sacramento, 1/5/77, and
Sacramento letter and LHM dated 12/6/76.

Enclosed for the Bureau are five copies and
for Minneapolis and San Francisco, one copy each of
LHM setting forth justification for continued full
investigation of subject BANKS.

SC T-1 is

SC T-2 is

LEADS:

SACRAMENTO

At Sacramento, California: Will continue to
follow activities of BANKS.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

- 5-169 sent IRU
1-26-77
3 destroyed
1-4084
ENCLOSURE
- ② - Bureau (Enc.-5) (RM)
 - 1 - Minneapolis (157-846) (Enc.-1) (Info) (RM)
 - 1 - San Francisco (88-15843) (Enc.-1) (Info) (RM)
 - 2 - Sacramento
- JRB:jk
(6)

EX 104 REC-49
NONSYMBOL SOURCE
PAGE ATTACHED

157-29309-126
JAN 21 1977



54 FEB 25 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

SC 157-4159

NON-SYMBOL NUMBER SOURCE PAGE

SC T-3 is [REDACTED] (Protect), [REDACTED]

b6
b7C
b7D

ADMINISTRATIVE SOURCE PAGE SHOULD
BE DETACHED PRIOR TO ROUTING TO
RESIDENT AGENCY.



UNITED STATES DEPARTMENT OF JUSTICE

FEDERAL BUREAU OF INVESTIGATION

Sacramento, California

January 14, 1977

In Reply, Please Refer to
File No.

DENNIS JAMES BANKS

In an international American Indian Movement (AIM) (see Appendix) press release, issued on June 12, 1975, at Farmington, New Mexico, in connection with the National AIM Convention, it listed Dennis Banks as the current National Executive Director of that organization.

BACKGROUND

According to records of the Bureau of Indian Affairs (BIA), Minneapolis, Minnesota, Dennis James Banks was born April 12, 1937, at Federal Dam, Minnesota. He is enrolled at the Leech Lake Reservation on Roll #50 of Minnesota Chippewa Tribe Basic Role. Banks' father is unknown, and his mother is listed as Annie Banks, deceased March 1, 1961.

RESIDENCE AND EMPLOYMENT

On September 17, 1976, SC T-1, who has knowledge of

learned that Banks had apparently received an appointment as an instructor or assistant professor at Deganawidah Quetzalcoatl University (DQU) commencing in the fall of 1976, and would be living somewhere in the vicinity of Davis or Woodland, California.

On September 17, 1976, inquiry at 644 Alvarado Avenue, Davis, revealed that from July 1, 1976 until August 31, 1976. Banks left a forwarding address of Box 409, Davis, California.

Sources whose identities are concealed herein have furnished reliable information in the past except where otherwise noted.

This document contains neither recommendations nor conclusions of the FBI. It is the property of the FBI and is loaned to your agency; it and its contents are not to be distributed outside your agency.

ENCLOSURE

157-29309-126

This is Amended LHM For SERIALS 12-1 and 124.
PER [] Cons./mmd 2/17/77

b7D

b6
b7C

DENNIS JAMES BANKS

It is noted that previous investigation concerning AIM has determined that Box 409 is assigned to DQU.

DQU is an Indian educational institution which is located on property formerly occupied by a U. S. Army communications facility. This property was seized by a band of militant Indians in November, 1970, having been abandoned by the U. S. Army, and the U. S. Department of Health, Education and Welfare subsequently provided funding enabling a so-called university to be established.

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ACTIVITIES

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b6
b7c

Banks, in a speech on December 12, 1972, to the Native American Student Association at Idaho State University, Pocatello, Idaho, described himself as a caravan chairman responsible for the "Trail of Broken Treaties", the group that traveled to Washington, D. C. and occupied the BIA Headquarters Building on November 2-8, 1972. He is reported as stating, "This country was founded on violence. Violence is a very normal thing. It's the most normal thing you and I know of - violence is the only thing this country understands. The Indian wars have not ended". The above information appeared in the "Idaho State Journal", the evening newspaper of Pocatello, Idaho.

DENNIS JAMES BANKS

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DENNIS JAMES BANKS

stated that violent confrontations have proven to be the best method of getting Governments to listen to Indian problems and Indians will continue to use it as long as Government officials fail to live up to their responsibilities. Banks told a large audience of students at the University of Manitoba that this is the only way the U. S. Government will listen. Banks further stated that if Governments stop listening again, that actions such as Wounded Knee could be only a warning of more large-scale actions to come.

On October 11, 1974, SC T-3, a confidential source abroad, advised that [REDACTED]

b7D

On May 21, 1975, Banks spoke at the ceremonies opening an AIM-sponsored "survival school" in Minneapolis, Minnesota. He stated that AIM was "joining forces with Third World groups located in Micronesia, South Africa, and South America".

On June 26, 1975, two FBI Agents were ambused and slain by Indians, while conducting an investigation on the Pine Ridge, South Dakota Indian Reservation. Four Indians were indicted by the Federal Grand Jury on November 25, 1975, charged with the premeditated murders of the two FBI Agents.

[REDACTED] was one of the four Indians charged in the above indictment. In addition to the above, [REDACTED] in November, 1972, was charged with "Unlawful Flight to Avoid Prosecution", in connection with his attempted murder of a Milwaukee, Wisconsin police officer. [REDACTED] was a Federal Fugitive at the time the two FBI Agents were slain.

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Investigation placed [REDACTED] in Seattle, Washington, in November, 1975, accompanied by Dennis James Banks. Subsequently, [REDACTED] was reported to be traveling with companions in a motor home and a Plymouth station wagon.

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DENNIS JAMES BANKS

On November 14, 1975, the motor home and Plymouth station wagon were stopped by Oregon State Police, Ontario, Oregon. [] fled from the scene of the stop, believed accompanied by another male. Four individuals were arrested at the scene, one of which was []

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[] Investigation placed Banks in Ontario, Oregon in November, 1975, and that he was traveling with friends in the motor home.

LEGAL PROCESS

As a result of the above incident, Banks, [] and three other persons were indicted by the Federal Grand Jury, Portland, Oregon, on November 25, 1975. The indictment returned contained nine counts charging violation of Title 26, U. S. Code, Sections 5841, 5842, 5861(D), 5861(H) and 5871. Banks was named specifically in Count Ten, "convicted felon did wilfully possess firearms".

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b7C

On January 24, 1976, Banks was apprehended in San Francisco, California, on the above charges.

On May 12, 1976, the indictment was dismissed against Banks and the other defendants in the U. S. District Court, Portland, Oregon. The Court, in dismissing the indictment, stated the delay in bringing this matter to trial was the fault of the Government.

On November 15, 1976, Banks appeared in Municipal Court, San Francisco, California, for a hearing on his extradition to South Dakota, where he is charged with "Armed Riot and assault". The hearing was continued to January 17, 1977.

DENNIS JAMES BANKS

PHYSICAL DESCRIPTION

Subject is described as follows:

Race:	American Indian
Sex:	Male
Date of birth:	April 12, 1937
Place of birth:	Federal Dam, Minnesota
Height:	5'11"
Weight:	170 pounds
Hair:	Black, long
Eyes:	Brown
Complexion:	Copper
Build:	Medium
Scars and Marks:	Tattoo, "Japan 54-57", right upper arm; "Dagger", right forearm; left arm, Social Security Account #502-28-0630", and Spade.
FBI Number:	118 417 D
Military Number:	Air Force 703-557-0251
Minneapolis Police Department Number:	47315

RECOMMENDATION

In view of subject's documented history of acts of force and violence and in view of his position of National Executive Director of AIM, continued full investigation of the activities of Banks appears warranted.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

The Attorney General **FEDERAL GOVERNMENT**
 Attention: Office of Policy and Planning
 Investigation Review Unit
 Director, FBI

1-26-77

zf
 DENNIS JAMES BANKS
 DS-AIM

The Federal Bureau of Investigation is conducting an investigation concerning captioned matter in accordance with the current guidelines for domestic security investigations.

Reference:

op

Enclosures:

- ☒ A memorandum to notify you of
☐ An extended preliminary investigation
☐ A limited investigation
☒ A full investigation

- ☐ A 90-day progress report
☐ An annual report
☐ Other

Request of Department:

- ☐ It is requested that you determine in writing whether continued full investigation is warranted.

- ☐ Other

REC-26

EX-109

Bureau File Number: 157-29309

157-29309-127
 JAN 27 1977

54 FEB 17 1977

MAIL ROOM ☒TELETYPE UNIT ☒

FBI/DOJ

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR FBI (157-29309)

FROM : *Cws/* SAC SAN FRANCISCO (100-79338) (P)

SUBJECT: DENNIS JAMES ⁹BANKS
EM - AIM
OO: Sacramento

DATE: 2/2/77

Re San Francisco letter to the Bureau, 12/7/76. ¹²³

On 1/24/77, [] San Francisco Police Department Intelligence Unit, advised that BANKS appeared at Department 19, Municipal Court, San Francisco, before Judge PAJALICH on 1/17/77, for extradition hearing. However, the hearing was continued to 4/18/77, and bail continued.

b6
b7C

2/11
ms
LEAD

SAN FRANCISCO

AT SAN FRANCISCO, CALIFORNIA. Will follow and report results of hearing scheduled for 4/18/77.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

2A

- EX-109
REC-62
157-29309-128
- ② - Bureau (RM)
2 - Sacramento (157-4159) (RM)
1 - Minneapolis (157-846) (Info.) (RM)
2 - San Francisco
JRH/sdc
(7)
- 1 FEB 4 1977
- 1271*
29





REORGANIZED CHURCH OF JESUS CHRIST OF LATTER DAY SAINTS

THE COUNCIL OF TWELVE APOSTLES
CENTRAL PROFESSIONAL BLDG.
221 WEST LEXINGTON
BOX 1053
INDEPENDENCE, MISSOURI 64051
TELEPHONE 816/833-1000

March 3, 1977

Mr. Clarence M. Kelley, Director
Federal Bureau of Investigation
Washington, DC 20535

Dear Mr. Kelley:

Last June and July we had some correspondence relative to possible discussions between you and Mr. Dennis Banks directed towards lessening the tensions between the F.B.I. and A.I.M. My last telephone communications indicated that you would be responding as soon as you had time to make the appropriate consultations within the government.

Since we now have a new President and Attorney General, I hope you will be able to raise the earlier question in a sympathetic climate which would lead to the discussions we hope for. To delay or ignore the inquiry tends to add to the problems of opening communication channels.

I am enclosing a copy of my July 30 letter for your ready information.

Thank you for your attention to our request.

Sincerely yours,

Enc.

Copy made for Telo. Rm.

3/8/77 Jm

ENCLOSURE

Memo Adams to
Held 5/6/77
Jm

saints

54 JUN 2 1977

CHURCH: WORLD HEADQUARTERS: INDEPENDENCE, MISSOURI

EXP. PROC.
34-MAR-8-1977

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July 30, 1976

Mr. Clarence M. Kelley, Director
Federal Bureau of Investigation
Washington, D.C. 20535

Dear Mr. Kelley:

I have now had an opportunity to talk with Mr. Dennis Banks about the topics which he might want to discuss with you. His ultimate objective, of course, is to obtain justice and protection for Indians and to reduce the tensions between the members of the American Indian Movement and the F.B.I. He believes that such an objective could be advanced if communication is established between you in such a way that trust could develop. Such communication would probably need to begin with a meeting having a modest agenda and limited expectations.

Perhaps the beginning meeting, or series of meetings, could focus on a delineation of the role of the F.B.I. on reservations. You referred in your letter to the F.B.I. having "no patrol jurisdiction on reservations... an investigative responsibility only." If Mr. Banks and the others in A.I.M. could be helped to understand in reasonable detail the meaning of your statement, in the context of their experience, expectations would be clarified and the actions they observe better understood.

A second topic to be treated at some time might be the means of briefing or sensitizing the F.B.I. personnel operating on or near reservations with the unique problems which exist between mixed bloods and full bloods on reservations. I understand that such problems do exist and we who are white often make matters worse than they need to be through lack of understanding. If agents were aware of these sensitivities they could do much to reduce hostilities by giving attention to the manner in which they do their jobs.

Third, another topic of discussion would be the formation of a non-law enforcement group which might go into tense situations to discover the nature of the root problems. If this could be done before the application of force, some problems could be handled before force is needed and/or may be diminished so that only minimal force is required.

In the first meeting it may be enough that you and Mr. Banks establish a communication link. I think we all understand something of the complexities of the problem with which we are dealing. The stakes are sufficiently high, however, that the effort and risk seem worthwhile.

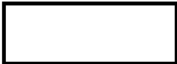
157-29309-128X
ENCLOSURE

Clarence M. Keller
Page 2
July 30, 1976

I will be in Pennsylvania during the week of August 2 to 6 and will call your office after you receive this letter and see if there is need or opportunity for me to visit you in Washington and discuss the matter further. Even if the agenda is acceptable the matter of when and where to meet and under what conditions is of considerable importance.

Thank you very much for your consideration of this matter.

Sincerely yours,



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Enclosed for you are two copies of a letterhead memorandum dated and captioned as above. The letterhead memorandum is being furnished to you for your information and for your use in the event you wish to refer to it in the course of your work. The letterhead memorandum is being furnished to you for your information and for your use in the event you wish to refer to it in the course of your work.

Very truly yours,
Clarence M. Keller

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR FBI (157-29309)

DATE: 4/22/77

FROM : SAC SAN FRANCISCO (100-79338) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: Sacramento

Re San Francisco letter to Bureau, 2/2/77.

On 4/21/77, [REDACTED] Department 19, Municipal Court, San Francisco, California, advised that matter regarding BANKS was continued again until 7/19/77, and his bail continued.

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LEAD

SAN FRANCISCO

AT SAN FRANCISCO, CALIFORNIA. Will follow and report results of hearing scheduled for 7/19/77.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

REC 55

157-29309-29

EX-103

22 APR 25 1977

- ② - Bureau (RM)
2 - Sacramento (157-4159) (RM)
1 - Minneapolis (157-846) (Info.), (RM)
2 - San Francisco
JRH/sdc
(7)



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Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: SC

DATE: 4/27/77

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ReSClet and LHM to Bureau, 1/14/77; LAairtel to Sacramento, 4/15/77; and SFlet to Bureau, 4/22/77.

Enclosed for the Bureau are five copies, for Minneapolis one copy, and for San Francisco two copies of LHM setting forth justification for continued full investigation of subject BANKS.

SC T-1 is

SC T-2 is

b7D

LEADS:

SAN FRANCISCO:

AT SAN FRANCISCO, CALIFORNIA:

Will follow and report results of extradition hearing scheduled for 7/19/77.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

- ENCLOSURE 312
- REC-39
EX-101
- 157-29309-130
- 2 MAY 2 1977
- ② - Bureau (Enc. 5) (RM)
1 - Minneapolis (157-846) (Enc. 1) (Info) (RM)
2 - San Francisco (100-79338) (Enc. 2) (RM)
1 - Sacramento
JRB:epg
(6)

ICC - Memo V LHM

in RM 5078

CC to IRM by

5-169

6/8/77

✓



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JUL 10 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

In Reply, Please Refer to
File No.

Sacramento, California
April 27, 1977

DENNIS JAMES BANKS

Background

According to records of the Bureau of Indian Affairs (BIA), Minneapolis, Minnesota, Dennis James Banks was born April 12, 1937, at Federal Dam, Minnesota. He is enrolled at the Leech Lake Reservation on Roll #50 of Minnesota Chippewa Tribe Basic Role. Banks' father is unknown, and his mother is listed as Annie Banks, deceased March 1, 1961.

Residence and Employment

On February 4, 1977, SC T-1, who has knowledge of

[redacted] advised that Dennis Banks continues to reside in Davis where he is one of eight considered faculty members at Deganawidah Quetzalcoatl University (DQU). His residence is the campus dormitory.

b7D

DQU is an Indian educational institution which is located on property formerly occupied by a U.S. Army communications facility. This property was seized by a band of militant Indians in November, 1970, having been abandoned by the U.S. Army, and the U.S. Department of Health, Education and Welfare subsequently provided funding enabling a so-called university to be established.

Activities

On January 19, 1977, the Las Vegas Office advised that Dennis Banks and other American Indian Movement (AIM) (see Appendix) leaders were then in Carson City, Nevada,

This document contains neither recommendations nor conclusions of the FBI. It is the property of the FBI and is loaned to your agency; it and its contents are not to be distributed outside your agency

157-29309-130

ENCLOSURE

Sources whose identities are concealed herein have furnished reliable information in the past except where otherwise noted.



DENNIS JAMES BANKS

stating that the Nevada State Prison discriminates against Indian prisoners for having organized a small group called "The Tribe", which was described as merely a group of Indians practicing their religious and cultural heritage.

On February 4, 1977, SC T-1 advised that there are eight currently employed persons at DQU who act as faculty members, one of whom is Dennis Banks, a national AIM leader.

On February 15, 1977, SC T-1 advised that Dennis Banks served as the master of ceremonies at a demonstration sponsored, in part, by AIM on February 11, 1977, in front of State Capitol Building #1, Sacramento, California.

SC T-1 stated that the purpose of the demonstration was to mobilize support to fight extradition proceedings outstanding against AIM leaders, Dennis Banks and [redacted] Banks identified himself as presently employed as an instructor at DQU near Davis. He thanked the people of California for their support and petitions which have enabled him to remain free in California and away from "the assassinations in South Dakota". The demonstration was attended by approximately 300 individuals.

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On June 26, 1975, two Agents of the FBI were ambushed and slain by Indians while conducting an investigation on the Pine Ridge, South Dakota Indian reservation. Four Indians were indicted by the Federal Grand Jury on November 25, 1975, charged with the premeditated murders of the two FBI Agents.

[redacted]
[redacted] was one of the four Indians charged in the above indictment.

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An article appearing in the San Joaquin Delta College (SJDC), Stockton, California, campus newspaper "Empact", dated March 25, 1977, authored by Dar Piatt, captioned "Past American Indian Movement Leader Banks Aims For Righting Wrongs To Indians", reflects that Banks spoke to SJDC students and that the theme of his message was "It's hard to be Indian."

DENNIS JAMES BANKS

The article refers to Banks as the "newly retired leader of the American Indian Movement". A paragraph in this article reads as follows:

"After retiring as head of AIM a little less than a week ago, Banks wants to concentrate on agriculture at DQU in Davis so he can come to understand more of Mother Earth. At present he is teaching Federal Indian Law at the University of California at Davis."

On April 12, 1977, SC T-2, who is familiar with AIM activities in the Los Angeles California area, advised

[REDACTED]
SC T-2 stated he did not know how long Banks planned to remain in the Los Angeles area.

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Legal Process

On January 24, 1977, [REDACTED] San Francisco, California Police Department Intelligence Unit, advised that Banks appeared at Department 19, Municipal Court, San Francisco, before Judge Pajalich on January 17, 1977, for an extradition hearing. The hearing was continued to April 18, 1977, and bail was continued.

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On April 21, 1977, [REDACTED] Department 19, Municipal Court, San Francisco, advised that the extradition matter regarding Banks was continued again until July 19, 1977, and bail for Banks was continued.

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On April 26, 1977, the "San Francisco Chronicle", a daily San Francisco newspaper, carried an article captioned "Court Orders Indian Leader Extradited". In essence, the California State Court of Appeal said that since the Governor of California "has failed or refused to perform this mandatory, ministerial duty, South Dakota's petition must be granted."

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

UNITED STATES GOVERNMENT

Memorandum

TO : Mr. D. W. Moore, Jr.

FROM : S. S. Mignosa

SUBJECT: DENNIS JAMES BANKS
DS - AIM

1 - Mr. R. G. Held
1 - Mr. J. B. Adams
1 - Mr. D. W. Moore, Jr.
1 - [REDACTED]

DATE: 5/5/77

1 - Mr. S. S. Mignosa
1 - [REDACTED]
1 - [REDACTED]

Assoc. Dir. _____
Dep. AD Adm. _____
Dep. AD Inv. _____
Asst. Dir. _____
Adm. Serv. _____
Crim. Inv. _____
Fin. & Pers. _____
Ident. _____
Intell. _____
Laboratory _____ b6
Legal Coun. _____ b7C
Plan. & Insp. _____
Rec. Mgnt. _____
Spec. Inv. _____
Tech. Serv. _____
Training _____
Public Affs. Off. _____
Telephone Rm. _____
Director's Sec'y _____

Purpose is to advise of information received from a source of unknown reliability indicating Dennis James Banks, convicted of local charges in South Dakota, [REDACTED]

DETAILS: Dennis James Banks, National Executive Director of the extremist American Indian Movement (AIM), was convicted on July 26, 1975, for being armed during a riot and assault with a dangerous weapon without intent to kill. Subsequently, Banks failed to appear for sentencing in Custer, South Dakota.

On May 13, 1976, Banks appeared at the Multnomah County Circuit Court, Portland, Oregon, to answer charges resulting from his failure to appear for sentencing. His bail was set at \$10,000 pending a decision by the Governor of Oregon to extradite him to South Dakota. On June 9, 1976, the Governor of Oregon announced that he was no longer considering the extradition of Banks since Banks was residing in California and the Governor of California has extradition papers for Banks.

An Unlawful Flight to Avoid Prosecution warrant was issued for Banks and he was arrested by Bureau Agents in California.

Subsequently, Banks appeared in Municipal Court, San Francisco, California, and posted \$10,000 bond. The Governor of California refused to extradite him and the State of South Dakota appealed the California Governor's refusal to the California Appellate Court. The California Appellate Court ruled in favor of the State of South Dakota. The Governor of California has 60 days in which to appeal the Appellate Court's ruling. This hearing is scheduled for 7/19/77.

157-29309

VRT:lek:ek
(8)

CONTINUED - OVER



5010-108

5 MAY 20 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings

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Memorandum to Mr. D. W. Moore, Jr.
Re: Dennis James Banks
157-29309

(DEFAWIDAH QUETZALCOATL)

On May 4/1977, our Portland Office received information from a source of unknown reliability indicating that Banks has been teaching at D. Q. University in Davis California. This source advised [REDACTED] b7D

Banks is currently the subject of a full investigation, office of origin, Sacramento. Pertinent offices have been alerted concerning the above information and appropriate leads are outstanding in an attempt to verify the information furnished by the Portland source. You will be kept advised of any pertinent developments.

RECOMMENDATION: None. For information.

APPROVED: [Signature]

Director [Signature]
Assoc. Dir. [Signature]
Dep. AD Adm. [Signature]
Dep. AD Inv. [Signature]

Adm. Serv. [Signature] Legal Coun. [Signature]
Crim. Inv. [Signature] Plan. & Insp. [Signature]
Fin. & Pers. [Signature] Rec. Mgmt. [Signature]
Ident. [Signature] Spec. Inv. [Signature]
Intell. [Signature] Tech. Servs. [Signature]
Laboratory [Signature] Training [Signature]
Public Affs. Off. [Signature]

UNITED STATES GOVERNMENT

Memorandum

TO : MR. HELD

FROM : J. B. ADAMS *JBA*

SUBJECT:
REQUEST FOR CONFERENCE

DATE: 5/6/77

Assoc. Dir. _____
Dep. AD Adm. _____
Dep. AD Inv. _____
Asst. Dir. _____
Adm. Serv. _____
Crim. Inv. _____
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Training _____
Public Affs. Off. _____
Telephone Rm. _____
Director's Sec'y _____

For some time, has been interested in arranging a conference between Mr. Kelley and Dennis Banks directed toward lessening the tensions between the FBI and the American Indian Movement (AIM). The Director has indicated his willingness to meet in this regard; however, it has not been considered feasible until after the pending trial of which has recently been completed. It was felt that a meeting with Banks might be exploited in some way for publicity during the trial of . The matter has been further compounded by the fact that Banks failed to appear for sentencing in South Dakota by local authorities on charges involving weapon offenses. An UFAP warrant was issued for Banks; he was arrested by the FBI in California and the Governor of California refused to extradite him. The matter was appealed to the California Appellate Court which ruled in favor of South Dakota, ordering the extradition of Banks to South Dakota. The Governor of California has 60 days to appeal this ruling and this hearing is currently scheduled for 7/19/77.

I contacted on 5/4/77 and advised him of Mr. Kelley's willingness to meet with him and Banks at such time as Banks' current difficulties were resolved. expressed his appreciation, felt that such a meeting would be meaningful, and would not be exploited for publicity purposes but might contribute to a lessening of tensions between the FBI and AIM. I told him that we are interested in any reasonable means of reducing such tension and that he may desire to consider having some other individual meet with Mr. Kelley in the event Banks may not be available for some period of time.

expressed appreciation and indicated he would be in touch with me at a later date.

ACTION: None. Information only.

JBA:ams
(4)
1 - Mr. Held
1 - Mr. Moore

APPROVED: *[Signature]*

Director _____	Adm. Serv. _____	Legal Coun. _____
Assoc. Dir. _____	Crim. Inv. _____	Plan. & Insp. _____
Dep. AD Adm. _____	Fin. & Pers. _____	Rec. Mgnt. _____
Dep. AD Inv. _____	Ident. _____	Spec. Inv. _____
	Intell. _____	Tech. Servs. _____
	Laboratory _____	Training _____
		Public Affs. Off. _____

memorandum

DATE: May 24, 1977

REPLY TO
ATTN OF: Investigation Review UnitSUBJECT: Dennis James Banks
DS-AIM

TO: Director, FBI

Exp.

157-29309-127

By letter of transmittal dated 1/26/77 you advised us that a full domestic security investigation was opened on the above-named subject. Our records show that a 90-day progress report was due with regard to this matter on 4/26/77. To date we have not received it. Please forward this report to us at your earliest convenience.

Myers

33 MAY 26 1977

EXP. PROC.

#38

Assoc. Dir. _____
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 Dep. AD Inv. _____
 Asst. Dir.:
 Adm. Serv. _____
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 Public Affs. Off. _____
 Telephone Rm. _____
 Director's Sec'y _____

FBI/DOJ

REC 61

157-29309-133

31
MAY 25 1977

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443

56 JUN 9 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

OPTIONAL FORM NO. 10
 (REV. 7-76)
 GSA FPMR (41 CFR) 101-11.6
 5010-112

Airtel

5/30/77

To: SAC, Sacramento (157-4159)
From: Director, FBI (157-29309)

J
DENNIS JAMES BANKS
DS - AIM
(BUDED: 6/10/77)

PERSONAL ATTENTION

1 -
1 - Mr. Mignosa
1 -
1 - Sacramento Guidance Folder
1 -

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Reurlet and LHM 1/14/77, initiating full domestic security investigation regarding captioned subject.

The Attorney General Guidelines for domestic security investigations require that a progress report be submitted to the Department of Justice 90 days after the initiation of a full domestic security investigation, and the results at the end of each year the investigation continues. Since the Department was advised of this full investigation by referenced LHM, you should, if not already done, promptly submit a progress report in this matter in compliance with Buded.

NOTE: Subject is National Executive Director of the extremist American Indian Movement. He was convicted in 7/75 for being armed during a riot and assault with a dangerous weapon without intent to kill. Subject failed to appear for sentencing and is currently residing in California, where the Governor refused to extradite him to South Dakota. The state of South Dakota is still attempting, through California Appellate Court, to extradite subject. Buded is necessary to avoid any unnecessary delay in submission of a progress report which is already delinquent.

VRT:hlb (8)
hlb

REC 57

157-29309-134

7 JUN. 1 1977

MAILED 4
MAY 27 1977
FBI

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Dep. AD Adm. _____
Dep. AD Inv. _____
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Public Affs. Off. _____
Telephone Rm. _____
Director's Sec'y _____

TELETYPE UNIT ☐

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*Aggr. [redacted] SC DN.
was telephonically advised
on 6/1/77, that progress
report not required. See
SC let + LHM 4/27/77.*

FBI/DOJ

✓ The Attorney General
 Attention: Office of Policy and Planning
 Investigation Review Unit
 Director, FBI

6/2/77

DENNIS JAMES BANKS
 DS - AIII

FEDERAL GOVERNMENT

The Federal Bureau of Investigation is conducting an investigation concerning captioned matter in accordance with the current guidelines for domestic security investigations.

Reference: FBI letter 1/26/77

Enclosures:

- ☒ A memorandum to notify you of
☐ An extended preliminary investigation
☐ A limited investigation
☐ A full investigation

- ☒ A 90-day progress report
☐ An annual report
☐ Other

Request of Department:

- ☐ It is requested that you determine in writing whether continued full investigation is warranted.

- ☐ Other

22 JUN 3 1977

Bureau File Number: 157-29309

55 JUN 10 1977
 MAIL ROOM ☒ TELETYPE UNIT ☐

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR FBI (157-29309)

DATE: 7/22/77

FROM: SAC SAN FRANCISCO (100-79338) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: Sacramento

Re San Francisco letter to Bureau dated 4/22/77.

On 7/21/77, [redacted] Department
19, Municipal Court, San Francisco, advised that matter
regarding BANKS' extradition was continued until 10/21/77.

b6
b7C

LEAD

SAN FRANCISCO

AT SAN FRANCISCO, CALIFORNIA. Will follow and report
hearing scheduled for 10/21/77.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

EX-114

REC-90

157-29309-136

2 JUL 25 1977

- File 157-29309
- ② - Bureau (RM)
 - 1 - Minneapolis (157-846) (Info.) (RM)
 - 2 - Sacramento (157-4159) (RM)
 - 2 - San Francisco
- JRH/sdc
(7)

ice 408458A



F229
AUG 2 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

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 Director Sec'y _____

Execution By Extradition?

Berkeley Barb, May 20-26, 1977



"There are a number of things involving my own case which border on a very moral concern: that's whether the judicial system has the authority, the right, or the desire, to send me to my death without facing any type of execution sentence. There is evidence that I will in all probability be killed if I am sent to South Dakota prisons. Do the courts have that authority?"

-- Dennis Banks

by Sharon Skolnick

Saturday noon, May 21st, a rally will take place at San Francisco's Civic Center in support of Governor Jerry Brown's stand to resist the extradition of American Indian Movement (AIM) leader Dennis Banks. Religious leaders Jim Jones

and Cecil Williams will join AIM members in support of Banks, a Chippewa Indian from Leech Lake, Minnesota and currently an instructor in Native American religion and philosophy and federal Indian law at D-Q University near Davis.

In the past year over 750,000 signatures have gone to the Governor's Office urging against Banks' extradition to South Dakota, where evidence suggests the AIM leaders life would be in jeopardy.

Banks fled South Dakota in 1975 just prior to sentencing on riot-and-assault charges stemming from a racial/political confrontation in the town of Custer. Fleeing westward, Banks was "harbored" by his good friend Lehman Brightman, a teacher in the Native Studies Program at Contra Costa College. Arrested and briefly jailed, Banks was freed on bail and released in California where he subsequently began to teach and was instrumental in bringing the sacred Sun Dance ceremony to the West for the first time in history.

South Dakota attorney general William Janklow promised white South Dakotans

Donald James Banks

The Washington Post _____
 Washington Star-News _____ b6
 Daily News (New York) _____ b7C
 The New York Times _____
 The Wall Street Journal _____
 The National Observer _____
 The Los Angeles Times _____

BERKELEY BARB page 3

Date 5/20-26 1977



6-V

File in Bufile 157-29309
157-29309-A
 NOT RECORDED

JUN 13 1977

FBI/DOJ

54 JUN 15 1977

Assoc. Dir. _____
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 Asst. Dir.: _____
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 Director Sec'y _____

Page 3

during his election campaign that he would "get" the AIM leaders. "There is only one way to stop the Indian problem here," Janklow has stated. "And that is to put a gun to the AIM leader's head and put a bullet through it." (Janklow has a special vendetta against Banks who, as a tribal attorney, once tried Janklow for the rape of a young Indian girl who had been Janklow's babysitter.)

Governor Brown initiated an extensive investigation into the case. After several months of silence, he was quoted in the San Francisco Chronicle as saying that there is "substantial evidence" of a threat to Banks' life and safety in South Dakota, and that he had "grave doubts" he would sign papers of extradition.

On April 25, however, the Third Appellate Court of California issued a writ of mandamus, ordering Brown to extradite Banks on the grounds that California and South Dakota are so-called "sister states" and have an agreement to automatically return each other's fugitives. This premise would reduce Brown's discretionary gubernatorial powers to a mer-

cly "mandatory, ministerial" function -- a kind of zombie hand with a pen.

Jerry Brown stated that he will appeal the lower court's decision to the California Supreme Court, and then act pursuant to the decision of that court. Now the question becomes: What are the discretionary powers of a California governor in light of substantial evidence of a life-threatening situation to a fugitive seeking sanctuary?

"The case involves other things, bordering on constitutional law, on states' rights, on governors' rights and human rights," Banks says. "There are a lot of people who are concerned about the rights, not only of one man, but of many individuals in South Dakota...."

Banks is above all a traditional man, and his direction is spiritual in nature. Politics and spirituality are seen by many traditional Native Americans as inextricably intertwined. This spirituality has carried the indigenous peoples of North America through 400 years of atrocities so gross and subtle, so insidious and pervasive, that it seems the dominant culture itself would rather avoid the issue and evidence completely than peer into America's bloody reflection.

With Dennis Banks, spirituality encompasses politics. He is an evocative speaker, in close touch with the realities and dreams of his people. Tired stereotypes bite the dust wherever he goes, and maybe that's what frightens status-quo white South Dakotans the most. Could it be time for them also to begin to wipe the dusty anglo fingerprints off the American mirror and take a good look?

KELEY BARBage 3

Washington Post _____
 Boston Star-News _____

Daily News (New York) _____
 The New York Times _____
 The Wall Street Journal _____
 The National Observer _____
 The Los Angeles Times _____

Date May 20-26 1977

UNITED STATES GOVERNMENT

Memorandum

TO : Mr. D. W. Moore, Jr.

FROM : S. S. Mignosa, sm/lmw

SUBJECT: DENNIS JAMES BANKS
DS - AIM

1 - Mr. J. B. Adams
1 - Mr. H. A. Boynton
1 - Mr. D. W. Moore, Jr.

1 - Mr. S. S. Mignosa
DATE: 9/14/77

1 - [REDACTED]
1 - [REDACTED]
1 - [REDACTED]

Assoc. Dir. _____
Dep. AD Adm. _____
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Telephone Rm. _____
Director's Sec'y _____

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PURPOSE: To advise of information received from a source of our Seattle Office indicating Dennis James Banks, convicted of local charges in South Dakota, [REDACTED] and of plans to obtain unlawful flight process regarding Banks.

SYNOPSIS: Dennis James Banks, National Executive Director of the extremist American Indian Movement (AIM), was convicted on 7/26/75, for being armed during a riot and assault with a dangerous weapon without intent to kill. Subsequently, Banks failed to appear for sentencing in Custer, South Dakota. Banks currently resides at Davis, California, where the Governor of California has refused to extradite him to South Dakota. The State of South Dakota has appealed the California Governor's refusal to the California Appellate Court, which has ruled in favor of the State of South Dakota. The Governor of California has in turn appealed the Appellate Court's ruling.

Our Seattle Office advises that one of their security informants [REDACTED]

[REDACTED] Our Minneapolis Office has indicated that local authorities in Custer have requested FBI assistance and the United States Attorney has indicated he will authorize unlawful flight process once Banks departs the State of California. Seattle indicates its informant [REDACTED]

[REDACTED] and that FBIHQ [REDACTED]

(CONTINUED -OVER)

157-29309

ENCLOSURE
ENCLOSURE ATTACHED

VRT:pjm

(9) 8/28/77



5 SEP 28 1977

U.S. Savings Bonds Regularly on the Payroll Savings Plan

Memorandum to Mr. D. W. Moore, Jr.
Re: DENNIS JAMES BANKS
DS - AIM
157-29309

should comment as to whether this case warrants such action.
Seattle was telephonically advised [redacted]
[redacted] You will be kept advised of pertinent
data.

RECOMMENDATION: None. For information.

APPROVED: [redacted] *mt*

Director _____	Adm. Serv. _____	Legal Coun. <i>m/x</i>
Assoc. Dir. _____	Crim. Inv. <i>mt</i>	Plan. & Insp. _____
Dep. AD Adm. _____	Fin. & Pers. _____	Rec. Mgmt. _____
Dep. AD Inv. <i>mt</i>	Ident. _____	Spec. Inv. _____
	Intell. _____	Tech. Servs. _____
	Laboratory _____	Training _____
		Public Affs. Off. _____

DETAILS: Information previously received indicated Dennis
James Banks, National Executive Director of the extremist
AIM, [redacted]

[redacted] Banks was initially convicted on 7/26/75, for being
armed during a riot and assault with a dangerous weapon
without intent to kill. Subsequently, Banks failed to appear
for sentencing in Custer.

An Unlawful Flight to Avoid Prosecution (UFAP)
warrant was issued for Banks, and he was arrested by Bureau
Agents in California, but the Governor of California refused
to extradite him. The State of South Dakota appealed the
California Governor's refusal to the California Appellate
Court, which ruled in favor of South Dakota. The Governor
of California appealed the Appellate Court's ruling.

A security informant of our Seattle Office, who
has furnished reliable information in the past, [redacted]
[redacted]

Memorandum to Mr. D. W. Moore, Jr.
Re: DENNIS JAMES BANKS
DS - AIM
157-29309

[REDACTED]

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b7D

Seattle informant indicates [REDACTED]

[REDACTED]

b7D

Seattle advises [REDACTED]

b7D

[REDACTED]
[REDACTED] requested FBIHQ's comments
regarding this.

Seattle Office was telephonically advised [REDACTED]

[REDACTED]
[REDACTED] It is felt, that with
Seattle informant [REDACTED]
[REDACTED] this should be a sufficient means to determine
if and when he departs the State of California. At that time,
Rapid City Mini Office will obtain UFAP warrant and advise
Seattle that warrant has been issued so that Banks's
apprehension can be effected.

b7D

You will be kept advised of pertinent developments.

[Handwritten signature]

ENCLOSURE



157-29309-137

157-29309
Sub. Dennis James Banks

157-29309-137



MINNEAPOLIS MN PD
47 315 9 4 7
HT 5 FT 11 WT 160
DOB 4 12 37 1 DP
DENNIS I RANKS





MINNEAPOLIS MN PD
47315 947
HT 5 FT 11 WT 160
DOB 4 12 37 DP
DENNIS I BANKS



B&W 16 & 35 mm Movie
Film Copied

Requisition #

00102

20

SE0009 2600322Z

SEP 15 11 26 PM '77

PP HI RC SC PD

DE SE

P 170125Z SEP 77

FM SEATTLE (88-9066) (P)
TO DIRECTOR (88-62332) PRIORITY
RAPID CITY (88-6431) PRIORITY
SACRAMENTO PRIORITY

PORTLAND (88-7637) PRIORITY

BT

~~SECRET~~

ATTENTION INTD

DENNIS JAMES BANKS, EM - AIM, OO: RAPID CITY.

RE SEATTLE TEL SEPTEMBER 15, 1977, SEATTLE TELCALS SACRA-
MENTO, PORTLAND, SEPTEMBER 16, 1977.

INVESTIGATION AT SEATTLE HAS DETERMINED THAT DENNIS BANKS'
DEPARTURE FROM CALIFORNIA TO CANADA HAS BEEN DELAYED UNTIL THE
LATE HOURS OF SEPTEMBER 19, 1977, OR EARLY MORNING HOURS OF
SEPTEMBER 20, 1977. FOR THE INFORMATION OF THE BUREAU AND RAPID
CITY: SACRAMENTO, PORTLAND, AND SEATTLE DIVISIONS HAVE A SEP 20 1977

Legal Coun.
Plan. & Insp.
Rec. Mgnt.
Spec. Inv.
Tech. Servs.
Training
Public Affs. Off.
Telephone Rm.
Director's Sec'y

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FUGITIVE INDEX

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233

(Records place copy in file 157-29309)

PAGE TWO, SE 82-9866, ~~SECRET~~

SURVEILLANCE CONTINGENCY PLANS IN EFFECT ON STANDBY BASIS WITH IMPLEMENTATION SCHEDULED UPON RECEIPT OF BANKS' ACTUAL DEPARTURE FROM CALIFORNIA TO CANADA.

SEATTLE AT SEATTLE. CONTINUING INVESTIGATION AND WILL KEEP APPROPRIATE OFFICES APPRISED.

~~CLASSIFIED BY 1403, 1333, CATEGORY 2, INDEFINITE.~~

ARMED AND DANGEROUS.

BT

*Declassified
by 6419
9/19/77*

SE0002 2630353Z

PP HQ PD RC SC

DE SE

P 190330Z SEP 77

FM SEATTLE (88-9066) (P)

TO DIRECTOR (88-62332) PRIORITY

PORTLAND (88-7637) PRIORITY

RAPID CITY (88-6431) PRIORITY

SACRAMENTO PRIORITY

BT

~~SECRET~~

ATTN: INTD

DENNIS JAMES BANKS, EM-AIM, OO: MINNEAPOLIS

RESETEL SEPTEMBER 16, 1977.

INVESTIGATION AT SEATTLE REFLECTS THAT BANKS STILL INTENDS

TO TRAVEL FROM CALIFORNIA TO CANADA AND HIS EXACT DATE IS UNKNOWN

OTHER THAN IT IS ANTICIPATED HIS DEPARTURE WILL BE DURING THE

PERIOD SEPTEMBER 20 THROUGH 24, 1977. PERTINENT INFORMATION

DEVELOPED THIS DATE REFLECTS BANKS INTENDS TO TRAVEL IN A TOTAL

OF FOUR VEHICLES TO CANADA. INFORMATION INDICATES THAT IF BANKS

DOES IN FACT TRAVEL IN THIS NUMBER OF VEHICLES THAT SOME OF THESE

SEP 20 12 05 AM '77

RECEIVED
FEDERAL BUREAU
OF INVESTIGATION
COMMUNICATIONS SECTION

Assoc. Dir.	_____
Dep. AD Adm.	_____
Dep. AD Inv.	_____
Asst. Dir.:	_____
Adm. Serv.	_____
Crim. Inv.	_____
Fin. & Pers.	_____
Ident.	_____
Intell.	_____
Laboratory	_____
Legal Coun.	_____
Plan. & Insp.	_____
Rec. Mgnt.	_____
Spec. Inv.	_____
Tech. Servs.	_____
Training	_____
Public Affs. Off.	_____
Telephone Rm.	_____
Director's Sec'y	_____

DECLASSIFIED BY SP-8 *ltzky*
ON 7-16-84
Comp # 239643

REC 12

EX-131

157-29309-138

7 SEP 21 1977

XEROX

JAN 10 1978

57 SEP 29 1977

PAGE TWO SE 88-9066 ~~SECRET~~

VEHICLES WILL INCLUDE SUPPORTERS OF BANKS THAT WILL BE CARRYING VARIOUS TYPES OF ARMS AS PROTECTION FOR BANKS DURING HIS FLIGHT. IN VIEW OF THIS, ALL OFFICES THAT WILL BE INVOLVED IN THE TENTATIVE SURVEILLANCE OF BANKS SHOULD EXERCISE EXTREME CARE.

SEATTLE: WILL CONTINUE INVESTIGATION AND APPROPRIATELY ADVISE RECEIVING OFFICES.

ARMED AND DANGEROUS.

~~CLASSIFIED 1493, XGDS, CATEGORY 2, INDEFINITE.~~

BT

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PP HI PD RC SE
DE SC
P 202135Z SEP 77

FM SACRAMENTO (89-147) (P)

TO DIRECTOR (88-62332) PRIORITY

PORTLAND (88-7637) PRIORITY

RAPID CITY (88-6431) PRIORITY

SEATTLE (88-9066) PRIORITY

BT

~~SECRET~~
DENNIS JAMES BANKS. EM - AIM. OO: RAPID CITY.

RE SEATTLE TELEPHONE CALLS TO SACRAMENTO, SEPT. 16, 1977, AND
SEPT. 19, 1977. CA.

FOR INFORMATION OF RECEIVING OFFICES, SACRAMENTO HAS BEEN CON-
DUCTING DISCREET SPOT CHECKS OF SUBJECT'S RESIDENCE. AN INDIVIDUAL
BELIEVED TO BE SUBJECT, OBSERVED AT HIS RESIDENCE, AFTERNOON OF
SEPT. 19, 1977, AND AT THAT TIME HE APPEARED TO BE WORKING ON THE
MOTOR OF A RED TRUCK OR VAN, NOT FURTHER IDENTIFIED.

THE FOLLOWING TWO VEHICLES HAVE BEEN AT SUBJECT'S RESIDENCE
ON A CONTINUING BASIS:

DECLASSIFIED BY SP-8 *luty/ky*
ON 7/16/84
Comp # 239643
XEROX

JAN 10 1978 *W*

Assoc. Dir.	
Dep. AD Adm.	
Dep. AD Inv.	
Asst. Dir.:	
Adm. Serv.	
Crim. Inv.	<i>W</i>
Fin. & Pers.	
Ident.	
Intell.	
Laboratory	
Legal Coun.	
Plan. & Insp.	
Rec. Mgnt.	
Spec. Inv.	
Tech. Servs.	b6
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Public Affs. Off.	
Telephone Rm.	
Director's Sec'y	

UNRECORDED COPY FILED IN 88-62332

56000709977

(1) 1970 BEIGE TOYOTA SEDAN, [REDACTED] LICENSE [REDACTED]
REGISTERED TO [REDACTED]
[REDACTED]

(2) 1964 GREEN PLYMOUTH STATION WAGON, [REDACTED] LICENSE
[REDACTED] REGISTERED TO [REDACTED]
[REDACTED] (THIS VEHICLE USUALLY PARKED IN SUBJECT'S
GARAGE.)

AS PREVIOUSLY POINTED OUT TO SEATTLE, CONTINUOUS COVERAGE OF
SUBJECT'S RESIDENCE UNDER DISCREET AND SECURE CONDITIONS IS
IMPOSSIBLE. COVERAGE OF SUBJECT'S ACTIVITIES AND MOVEMENTS AT DQU
UNIVERSITY ALSO IMPOSSIBLE, DUE TO TIGHT SECURITY. IN VIEW OF THIS,
SACRAMENTO IS CONTINUING PERIODIC DISCREET SPOT CHECKS OF RESIDENCE
AND GENERAL AREA.

SACRAMENTO
~~ON-SACRAMENTO~~ HAS SURVEILLANCE TEAM, [REDACTED]
[REDACTED]

FOR THE INFORMATION OF PORTLAND, SACRAMENTO UNITS WILL [REDACTED]
[REDACTED]

SUBJECT AND ASSOCIATES SHOULD BE CONSIDERED ARMED AND DANGEROUS.

~~CLASSIFIED BY 1658, XGDS, CATEGORY 2, INDEFINITE~~

BT

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PP HQ PD SC SE

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FEDERAL BUREAU
OF INVESTIGATION
COMMUNICATIONS SECTION

Assoc. Dir. _____
Dep. AD Adm. _____
Dep. AD Inv. _____
Asst. Dir.: _____
Adm. Serv. _____
Crim. Inv. Walt
Fin. & Pers. _____
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Rec. Mgnt. _____
Spec. Inv. _____
Tech. Serv. _____
Training _____
Public Affs. Off. _____
Telephone Rm. _____
Director's Sec'y _____

FM RAPID CITY (88-6431) (P)

TO DIRECTOR (157-29309) PRIORITY

PORTLAND (88-7637) PRIORITY

SACRAMENTO (89-147) PRIORITY

SEATTLE (88-9066) PRIORITY

BT

E F T O

ATTENTION INTD

DENNIS JAMES BANKS; EM - AIM.

ALL INFORMATION CONTAINED
HEREIN IS UNCLASSIFIED
DATE 7/16/84 BY SP-1 BTJ/HY
Comp # 039643

RE SACRAMENTO TELETYPES TO BUREAU DATED SEPTEMBER 20 AND
22, 1977.

ON SEPTEMBER 28, 1977, U.S. PROBATION OFFICER, SOUTH DAKOTA,
ADVISED A PROBATIONER, [REDACTED] HAS BEEN TRAVELING
FROM THE [REDACTED] TO THE STATE.

REC-59

DE-1

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OF CALIFORNIA WHERE HE HAS BEEN RESIDING [REDACTED]

[REDACTED] ON JUNE 3, 1977, [REDACTED]

ASSOCIATE, RENTED A FORD F-60 U-HAUL TRUCK, VIN F60CCBF7061, IN RAPID CITY, SOUTH DAKOTA, AND SINCE THEN [REDACTED] AND ASSOCIATES HAVE BEEN TRAVELING TO AND FROM THE WEST COAST, POSSIBLY IN THAT TRUCK. NCIC NEGATIVE ON VIN.

RENTAL TRUCK REPORTEDLY OVERDUE BUT HAS NOT BEEN TURNED IN. PROBATION OFFICER ADVISED A [REDACTED] YOLO COUNTY SHERIFF'S OFFICE, SACRAMENTO, CALIFORNIA, ADVISED HIM [REDACTED] MAY BE IN POSSESSION OF STOLEN RENTAL TRUCK WHICH HAS BEEN TRANSPORTED FROM SOUTH DAKOTA TO CALIFORNIA. [REDACTED] INDICATED HE IS WELL AWARE OF [REDACTED] AND HIS ASSOCIATES AT D. Q. UNIVERSITY.

RAPID CITY OPENING SEPARATE ITSMV INVESTIGATION REGARDING THE FORD TRUCK.

FOR INFORMATION OF RECEIVING OFFICES, PROBATION OFFICER ADVISED A CARAVAN OF NATIVE AMERICANS, INCLUDING [REDACTED] AND ASSOCIATES, SCHEDULED TO LEAVE D. Q. UNIVERSITY EN ROUTE THE STATE OF WASHINGTON ON OCTOBER 5, 1977. U-HAUL TRUCK MAY BE INVOLVED IN THAT CARAVAN.

RAPID CITY IS UNAWARE OF LICENSE NUMBER OF TRUCK OR OF

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PAGE THREE

RC 88-6431

E F T O

SOURCE FROM WHICH IT WAS ALLEGEDLY RENTED.

IF FEASIBLE, SACRAMENTO WILL ATTEMPT TO DETERMINE LICENSE
NUMBER OF TRUCK IF OBSERVED DURING COURSE OF INVESTIGATION
REFERRED TO IN REFERENCED TELETYPES AND WILL SUTEL RAPID CITY
SO OWNERSHIP OF VEHICLE MAY BE DETERMINED.

ARMED AND DANGEROUS.

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DE PD 001

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OF INVESTIGATION
COMMUNICATIONS SECTION

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Legal Coun.	_____
Plan. & Insp.	_____
Rec. Mgmt.	_____
Spec. Inv.	_____
Tech. Servs.	_____
Training	_____
Public Affs. Off.	_____
Telephone Rm.	_____
Director's Sec'y	_____

P P 220030Z SEP 77

FM PORTLAND (88-7637) (P)

TO DIRECTOR (88-62332) PRIORITY

RAPID CITY (88-6431) PRIORITY

SACRAMENTO (89-147) PRIORITY

SEATTLE (88-9066) PRIORITY

BT

~~SECRET~~

ONR

DENNIS JAMES BANKS, EM - AIM; OO: RAPID CITY.

RE SACRAMENTO TELETYPE SEPTEMBER 20, 1977.

FOR INFORMATION OF SACRAMENTO AND SEATTLE, PORTLAND
HAS PREPARED TWO CONTINGENCY PLANS FOR ANTICIPATED SURVEILLANCE
AND IT IS EXPECTED THAT A HIGH DEGREE OF FLEXIBILITY WILL BE
NECESSARY TO COORDINATE SUCCESSFUL DISCREET SURVEILLANCE.

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157-29309
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Handwritten: UR 1001

55 OCT 6 1977

PAGE FOUR

PD 88-7637 ~~SECRET~~

SUBJECT AND ASSOCIATES SHOULD BE CONSIDERED ARMED
AND DANGEROUS..

~~CLASSIFIED BY 3729, YGDS, INDEFINITE.~~

BT

*Declassified by 6419
9/22/87*

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

FROM : *clm*
BS SAC, SAN FRANCISCO (100-79338) (P)

SUBJECT: DENNIS JAMES BANKS
EM - AIM
OO: Sacramento

DATE: 11/2/77

138
RE SF letter to the Bureau dated 7/22/77.

44
On 11/2/77 SA [] contacted []
[] of the Court, Department 19, Municipal Court,
San Francisco, who advised that the extradition hearing
regarding DENNIS BANKS had been continued to 1/16/78.
[] advised the court was still awaiting the decision
by the California Supreme Court regarding the issuance of
the Governor's warrant. *JD*

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LEAD

SAN FRANCISCO

AT SAN FRANCISCO, CALIFORNIA: Will follow and report
hearing scheduled for 1/16/78.

IN VIEW OF PAST ACTIVITIES BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

EX-108 REC-3 157-29309-142

11 NOV 4 1977

- 2* - Bureau (RM)
1 - Minneapolis (157-846) (INFO) (RM)
2 - Sacramento (157-4159) (RM)
2 - San Francisco
SMB/dp
(7) #14
- 100-409*
- SIX*



NOV 14 1977 U.S. Savings Bonds Regularly on the Payroll Savings Plan

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 11/16/77

FROM : SAC, SACRAMENTO (157-4159) (P)

SUBJECT: DENNIS JAMES BANKS
DS - AIM
OO: SC

ReSFlet to Bureau, 11/2/77.

On 10/25/77, it was determined through the office of the Third Appellate District, California State Court of Appeals, Library and Court Building, Room 119, Sacramento, that their case #16531 had been referred to the California State Supreme Court, 4250 State Building, San Francisco, California, telephone #415-557-0587.

On 10/25/77, inquiry of the Sacramento office of the California Supreme Court, Library and Court Building, Room 100, determined that the case of the State of South Dakota versus Brown (i.e., captioned matter) was to be considered in the presentation of oral arguments at 9:30 a.m., 11/10/77, in the courtroom of the Supreme Court at the Library and Courts Building, case #S.F.23579. All written briefs in the case have already been submitted and all records pertaining to this matter are maintained in San Francisco. Following completion of the above arguments, the Supreme Court will take the matter under advisement and deliver an opinion which might take several months or possibly a year.

On 11/14/77, recontact with the California Supreme Court, Sacramento, determined that oral arguments had been presented by respective counsel for DENNIS BANKS and the State of California on 11/10/77, and that the courtroom had been packed with spectators, although no demonstrations had taken place.

LEADS:

- ② Bureau (RM)
- 2 - San Francisco (100-79338) (RM)
- 1 - Minneapolis (157-846) (RM)
- 1 - Sacramento

WAW:epg
(6)



5010-110

DEC 1 1977

Buy U.S. Savings Bonds Regularly on the Payroll Savings Plan

EX-108

REC 28

157-29309-143

14 NOV 18 1977

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b7c

SC 157-4159

SAN FRANCISCO:

AT SAN FRANCISCO, CALIFORNIA:

Follow litigation in this matter through the California State Supreme Court, 4250 State Building, telephone #415-557-0587, to determine when the court will render a written opinion.

ARMED AND DANGEROUS.